

TENTATIVE RULING Thursday, September 3, 2026

Department 35 Michael A. Dauber Judge

Tentative Rulings for Department S35, if posted, are on court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) by 3:00 p.m. and 7:00 p.m. on the court day before the hearing (in some cases, on a non-court day before the hearing). If no tentative ruling is posted by 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8707 in advance of the hearing. If all parties submit on a tentative ruling, the tentative ruling will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Prior to the hearing, you can email the completed Stipulation to Department S37 at AGear@sb-court.org. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CASE NUMBER: CIVSB2432782: Regina Padilla vs. FCA US, LLC and Puente Hills Chrysler Dodge Jeep Ram

Joint Statement of the case: Plaintiff Regina Padilla leased a 2022 Jeep Wrangler Unlimited vehicle on or about June 11, 2022 which was manufactured and/or distributed by Defendants from Defendants' authorized dealer. Plaintiff contends that Defendants breached its express warranty and implied warranty obligations under the Song-Beverly Consumer Warranty Act. FCA disputes these allegations and asserts that it did not breach any of its obligations.

Court Order: No further briefs on the motions in limine will be permitted absent the Court's permission. This includes a briefing labeled as a brief on the motion in limine, or for example, a trial brief, a trial memorandum, or a pocket brief. Any additional briefing filed in violation of this order will be stricken.

RULING

Plaintiff's Motions in Limine

Motion in Limine No.1: Plaintiff's Motion to Exclude Settlement Discussions. Defendant opposes. **GRANTED** Both counsel agree CEC 1152 prohibits an offer[s] of settlement and compromise to prove liability. Plaintiff's motion is devoid of specifics as pointed out by Defense. Defense notes that this evidence may be admitted for some other relevant purpose but fails to state what it intends to offer and for what specific other purpose. All statements resulting from contextual "negotiations" including statutory 998 offers are excluded. Plaintiff and Defense counsel are both prohibited from presenting evidence that offers were/were not made.

Motion in Limine No.2: Plaintiff's motion to exclude evidence of Defendant's proposed arbitration as a resolution of this matter. Defendant opposes. **GRANTED.** Contrary to Defendant's arguments Plaintiff does not seek to invoke the rebuttable presumption under California Civil code 1793.22(b) and its seeks damages under California Civil code section 1794 (c) not 1794(e). No reference will be allowed to arbitration in this matter.

Motion in Limine No.3: Plaintiff's motion to exclude mention of attorney fees and litigation costs. Defendant opposes. **GRANTED.** Under CEC 210 this is not relevant to the elements.

Motion in Limine No.4: Plaintiff's motion to exclude Plaintiff's application for financing and financial condition. Defendant opposes. **GRANTED.** This topic is not relevant under CEC 210. Defense motion is noted and the ruling applies to both litigants. The respective wealth of the litigants will not be mentioned by either party.

Motion in Limine No.5: Plaintiff's motion to exclude reference to Attorney advertising. Defendant opposes. **GRANTED.** There is no relevance under CEC 210-not even to tangentially to the specific circumstances of the buyer.

Motion in Limine No. 6: Plaintiff's motion to exclude/preclude evidence of timely revocation of acceptance was required. Defendant opposes. **GRANTED IN PART; DENIED IN PART.** This is a jury determination impacting the remedies/ measure of damages after a jury determination if a breach of implied warranty did in fact occur. This shall be addressed in the verdict form. Defense will not be permitted to argue there was no breach of implied warranty because Plaintiff failed to timely revoke but the issue is relevant to the jury determination as to which measure of damages is to be applied and evidence shall be permitted for that determination.

Motion in Limine No. 7: Plaintiff's motion statements made by Defendant's Dealership Personnel (Warranty Agents) are non-hearsay and admissible. Defendant opposes. **GRANTED** subject to foundational requirements established outside the presence of the jury and identification of statements intended to be introduced. ECE 1220, 1222, 1224 and Civil code sections 2295 through 2300, 2304.

Motion in Limine No. 8: Plaintiff's motion to exclude any reference to CCP 998 offer to compromise. **GRANTED.** See Court's ruling Motion in Limine #1 above and cf. CCP 998(b)(2) "cannot be given trial..."

Defendant's Motions in Limine

Motion in Limine No.1: Defense motion to exclude reference to Dealer as Agent of Manufacturer. Plaintiff did not file opposition. This motion is the same issue the Court addressed in Plaintiff's in limine motion 7. Please see tentative above.

Motion in Limine No.2: Defense motion to exclude issues presented only once, that have been repaired or not included in repair orders. Plaintiff did not file an opposition. **DENIED.** In this Court's view the Defense motion confuses two issues: what is relevant and admissible with what is sufficient to prove a Song-Beverly violation. The Plaintiff in its Motions in Limine did not disclose to the court the issues/defects it is alleging. Understood that several unrelated repairs orders which were resolved may have a different impact of the case, issues presented only once, issues that have been repaired and issues that may have been reported and not written down are relevant to several aspects (the Court has not received any proposed stipulations) implicated in a Song-Beverly trial. Some are: the subject vehicle repair history; the similarity/dissimilarity of the alleged defect, knowledge are to name a few. Certainly, under *Silvio v. Ford Motor Co.(2003) 109 Cal. App. 4th 1205* Plaintiff is precluded from arguing that one single attempt would trigger a Song-Beverly violation. But the Court sees the matters seeking to be excluded in this motion as relevant to several underlying issues in a Song-Beverly trial.

Motion in Limine No 3: Defense motion to exclude Technical Service Bulletins and Recalls. Plaintiff did not file an opposition. **DENIED.** Again, Plaintiff in its MILs has not identified the specific defect(s) that is the basis of this action. But the admissibility of the TSB and recalls must be related to the alleged defect(s) to be relevant. Additional relevance is to manufacture's knowledge.

Motion in Limine No.4: Defendant's motion to bifurcate Plaintiff's claim for punitive damages and to exclude evidence regarding financial condition regarding financial condition. Plaintiff did not file an opposition. **GRANTED IN PART. DENIED IN PART.** Plaintiff's Cause of Action Six is Fraudulent inducement/Concealment. Plaintiff's prayer is for punitive damages. Defense has requested bifurcation and it is granted and evidence concerning financial condition is bifurcated under CC 3295(d). However the court will allow evidence of in the initial trial phase concerning liability and whether the defendant acted with oppression, fraud or malice with the requisite level of proof required in CC 3294 reflected in the verdict forms. If the jury determines oppression, fraud or malice was committed then the same jury will thereafter hear evidence to determine punitive damages and the defendant's financial condition.

Motion in Limine No. 5: Defendant's motion in Limine to exclude evidence not disclosed in Discovery. Plaintiff did not oppose. **RESERVED.** Court will hear further argument on this issue prior to jury selection.

Michael A. Dauber Judge San Bernardino County Superior Court